



POLICE DEPARTMENT

February 12, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202206614 (Incident Date: August 21, 2022) regarding Sergeant Marisol Abreu, Tax No. 940184 (DADS No. 2023-29467)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202206614, pertaining to Sergeant Marisol Abreu. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Abreu would be detrimental to the Police Department's disciplinary process.

In this matter, Sergeant Abreu, along with other officers, responded to a call of a dispute between neighbors. Shortly after arriving and speaking with one complainant, Sergeant Abreu and the officers entered the complainant's residence. At the direction of the Sergeant, they searched the location. After the search was completed, Sergeant Abreu did not issue a business card, as required.

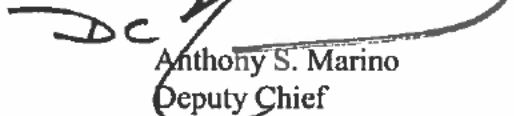
The Police Commissioner disagrees with the CCRB's application of the Disciplinary System Penalty Guidelines and recommendation of Charges and Specifications in this matter. The penalty on each of the charged misconduct should be calculated as concurrent, since they occurred within one continuous interaction with the complainant inside her home. In addition, the complainant did provide consent to search the apartment, however, the added step of informing the complainant of the right to refuse said search, as required by the New York City Administrative Code, was omitted. Since this requirement was not satisfied, a mitigated penalty for the search specification should still be applied. Furthermore, Sergeant Abreu's positive disciplinary history further supports the application of a mitigated penalty.

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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "B" Command Discipline for the improper search allegation and failing to provide a business card.

Sincerely,

A handwritten signature in black ink, appearing to read "AS Marino", with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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ARVA RICE
INTERIM CHAIR

February 16, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202206614 v. SGT Marisol Abreu, Tax No. 940184 (DADS No. 2023-29467):

Commissioner Caban:

I am writing in response to the letter from Deputy Chief, Anthony Marino, dated February 12, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to not issue Charges and Specifications in the above referenced matter but instead to direct the issuance of a Schedule “B” Command Discipline. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

The Police Commissioner agrees with the CCRB’s substantiation of the allegations on this matter but does not agree that Charges and Specifications are the appropriate form of discipline in this matter.

While the CCRB treated each of the substantiated allegations against SGT Abreu as deserving of a consecutive penalty, the Police Commissioner’s decision to treat these allegations as deserving of concurrent penalties is not unreasonable on its face.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



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Executive Director
New York City Civilian Complaint Review Board
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New York, NY 10007

Re: CCRB Case No. 202206614 (Incident Date: August 21, 2022) regarding Sergeant Marisol Abreu, Tax No. 940184 (DADS No. 2023-29467)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated February 16, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant Marisol Abreu, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Abreu for the reasons expressed in my February 12, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Sergeant Abreu be issued a Schedule "B" Command Discipline for the improper search allegation and failing to provide a business card.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office